

HOUSE BILL 811

By Grills

AN ACT to amend Tennessee Code Annotated, Title 29,
Chapter 34, relative to charitable organizations.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 29-34-213, is amended by adding the following as a new subsection:

(c) Notwithstanding subsection (b), a charitable organization that provides housing to a person who the charitable organization knows is unlawfully present in the United States may be held liable for a loss, damages, injury, or death resulting from a criminal offense committed by the person who is unlawfully present in the United States while the person is receiving housing services from the charitable organization if the charitable organization's conduct in providing housing constitutes negligence, gross negligence, or willful and wanton misconduct.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.